

JUDGE NATHAN

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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

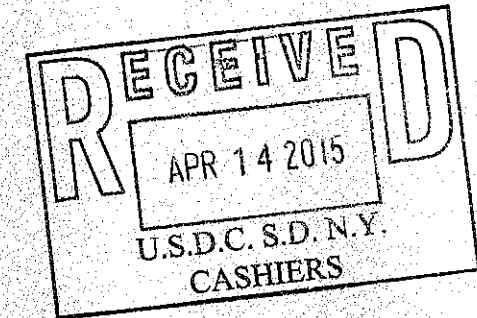
-----X
JUAN MALDONADO,

Plaintiff,

-against-

THE CITY OF NEW YORK; THE NEW YORK
CITY POLICE DEPARTMENT; P.O. JEFFREY
SISCO SHIELD # 027744; P.O. PAULO
DOMINGUEZ SHIELD # 018292;
SGT. HERMINIO BAEZ TAX # 921134
JOHN DOES 1-4, NYPD

Defendants.
-----X



COMPLAINT
JURY TRIAL DEMANDED

PRELIMINARY STATEMENT

1. This is an action brought pursuant to 42 U.S.C. § 1983 and New York State law alleging civil rights violations by the City of New York and individuals employed by the New York City Police Department ("NYPD"). Plaintiff alleges that, on February 1, 2014, NYPD officers subjected him to false arrest, imprisonment, an illegal strip search, breached Plaintiff's home in absence of a warrant; or if a warrant was obtained it was after the search; or if a warrant was obtained it was based on fabricated and/or grossly misrepresented evidence in violation of the Fourth, Fifth and Fourteenth

Amendments to the United States constitution, and New York State constitution Article 1 § 12. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of attorney's fees and costs pursuant to 42 U.S.C. § 1988(b), an award of any expert witness fees pursuant to 42 U.S.C. §1988(c), and such other relief this Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983, the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. § 1331 and § 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide Plaintiff's claims brought under New York State law.

4. Venue is proper in the Southern District of New York pursuant to 28 U.S.C. §1391 (b).

PARTIES

5. Plaintiff, Juan Maldonado, is an adult citizen of the United States, and resident of the State of New York. The events complained of occurred in the City of New York, Bronx County.

6. The City of New York is a municipal corporation organized under the laws of the State of New York.

7. Police Officer Jeffrey Sisco Shield # 027744, Paulo Dominguez Shield # 018292, Sergeant Herminio Baez Tax # 921134, and John Does 1-4, are employed by NYPD and were involved in the arrest of Plaintiff and

responsible for the torts arising out of Plaintiff's unlawful arrest, and unlawful breach of his home. These NYPD officers were acting under color of state law, and in their capacities as NYPD officers at all relevant times herein. The officers are liable for directly participating in the unlawful acts described herein, and for failing to intervene to protect Plaintiff from unconstitutional conduct. The NYPD officers are sued in their individual capacities as well.

ALLEGATIONS OF FACT

8. On February 01, 2014, at approximately 7:40 p.m., at 820 East 180 Street in Apartment 8T, in Bronx County, New York, NYPD officers, Jeffrey Sisco Shield # 027744, Paulo Dominguez Shield # 018292, Sergeant Herminio Baez Tax # 921134, and John Does 1-4, NYPD breached Plaintiff's home in absence of a warrant; or if a warrant was obtained it was after the search was executed; or the warrant was based on fabricated or grossly misrepresented evidence.

9. The apartment 8T at 820 East 180th Street, Bronx New York, was leased to Plaintiff, and his wife. Plaintiff and his wife have two children in common whom also resided in the above address.

10. On February 01, 2014, at approximately 7:40 p.m., Plaintiff was in apartment 8T watching a basketball game with his six-year-old son, when Plaintiff's wife informed him that someone was pounding on the front

door attempting to enter their home. Alarmed, Plaintiff ran to the front door, and his son ran closely behind him.

11. The front door was brought down, and NYPD officers "rushed in", displaying NYPD shields and screaming, "get down", "get down", "on the floor." NYPD police officers, including Jeffrey Sisco Shield # 027744, Paulo Dominguez Shield # 018292, Sergeant Herminio Baez Tax # 921134, and John Does 1-4, NYPD, entered Plaintiff's apartment.

12. The NYPD officers tackled Plaintiff to the ground causing pain to Plaintiff's lower back. One of the NYPD officers handcuffed Plaintiff excessively tight, causing marks on Plaintiff's wrist and interfering with Plaintiff's circulation, then escorted Plaintiff from the living room, to the master bedroom.

13. Notably, at no point did NYPD officers provide a copy, or display a valid search warrant, despite Plaintiff's demands.

14. At the master bedroom, while in police custody, and without the benefit of *Miranda* Warnings, Plaintiff was interrogated by Paulo Dominguez Shield # 018292 and Sergeant Herminio Baez Tax # 921134. During the interrogation they told Plaintiff "you know what this is about."

15. Plaintiff replied, "is it about my apartment?" Paulo Dominguez Shield # 018292 and Sergeant Herminio Baez Tax # 921134, answered "yes, but if you tell me about anybody in the building who has anything in their house we will walk out of here as if this never happened."

16. Plaintiff did not have any information to exchange, so the NYPD Officers threatened to call Administration of Children Services, and to "wreck his house" if he did not provide them with the information sought. Unable to provide any information to the NYPD officers, they removed Plaintiff from the premises, and escorted him to a police van.

17. One of the officers forcefully threw Plaintiff into the police van causing plaintiff to fall and hit his face on the floor of the van.

18. Once Plaintiff was secured in the van, Paulo Dominguez Shield # 018292 went back to the subject apartment, and interrogated Plaintiff's wife about the Plaintiff, and other people in the building or adjacent buildings who were "selling contraband." Plaintiff's wife was unable to provide any information, and in response Defendants began "ransacking" the master bedroom, living room, closets, and kitchen until NYPD officer, Paulo Dominguez Shield # 018292, purportedly recovered a small amount of marijuana and a "gravity" knife in a kitchen drawer.

19. While at the 48th Precinct, Plaintiff was unlawfully strip-searched, ordered to squat, bend over and cough. Nothing illegal was found on Plaintiff's person.

20. In the absence of *Miranda* Warnings, Jeffrey Sisco Shield # 027744, Paulo Dominguez Shield # 018292, Sergeant Herminio Baez Tax # 921134, and John Does 1-4, NYPD later took Plaintiff to an interrogation room located in the 48th Precinct. Defendants, NYPD officers, offered

Plaintiff a "Desk Appearance Ticket" in order to avoid being put "through the system" in exchange for intelligence. Plaintiff was unable to provide any information Defendants thought worthy. The Defendant became frustrated, and incensed, and threatened to put Plaintiff "through the system" for "being an asshole." Plaintiff was subsequently arrested and processed; i.e., put "through the system".

21. Defendants, Jeffrey Sisco Shield # 027744, Paulo Dominguez Shield # 018292, Sergeant Herminio Baez Tax # 921134, and John Does 1-4, NYPD acted in concert with each other to fabricate or grossly misrepresent a story that Plaintiff and other people in the same or adjacent buildings had been selling contraband out of their homes.

22. Several hours after his arrival at the 48th Precinct, the police took plaintiff to Bronx County Booking for processing and arraignment.

23. Plaintiff was incarcerated in a cell that was filthy and filled with garbage and excrement.

24. While plaintiff was confined in Central Booking, Defendants, Jeffrey Sisco Shield # 027744, Paulo Dominguez Shield # 018292, Sergeant Herminio Baez Tax # 921134, and John Does 1-4, NYPD with reckless and gross disregard for the truth misrepresented the events that occurred on February 1, 2014, to the prosecutor employed by the Bronx District Attorney's Office. The aforesaid gross

misrepresentations resulted in false criminal charging being filed against Plaintiff.

25. On February 2, 2014, Bronx District Attorney's Office filed a misdemeanor complaint bearing the number 2014BX005918. Plaintiff was arraigned, entered a plea of "Not Guilty", and was "released on his own recognizance." The trial on this matter remains outstanding. This complaint was filed in accord with GML § 50-1 to toll the statute of limitations.

26. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered emotional distress, mental anguish, fear, embarrassment, humiliation, discomfort, pain, bruising, and loss of liberty. Plaintiff alleges that, on February 1, 2014, NYPD officers subjected him to false arrest, imprisonment, an illegal strip search, breached Plaintiff's home in absence of a warrant; or if a warrant was obtained it was after the search; or if a warrant was obtained it was based on fabricated and/or grossly misrepresented evidence in violation of the Fourth, Fifth and Fourteenth Amendments to the United States constitution, and New York State constitution article 1 § 12. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of attorney's fees and costs pursuant to 42 U.S.C § 1988(b), an award of any expert witness fees pursuant to 42 U.S.C §1988(c), and such other relief this Court deems just and proper.

**PLAINTIFF'S FEDERAL CLAIMS AGAINST JEFFREY SISCO
SHIELD # 027744, PAULO DOMINGUEZ SHIELD # 018292,
SERGEANT HERMINIO BAEZ TAX # 921134, AND JOHN DOES 1-
4 NYPD**

27. Plaintiff repeats and re-alleges the allegations contained in ¶¶ 1-27 as if fully set forth herein.

28. The conduct of Jeffrey Sisco Shield # 027744, Paulo Dominguez Shield # 018292, Sergeant Herminio Baez Tax # 921134, and John Does 1-4, NYPD described herein, amounted to false arrest, excessive force, an illegal strip search, and fabrication of evidence in violation of 42 U.S.C. § 1983 and the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. Plaintiff alleges that, on February 1, 2014, NYPD officers subjected him to false arrest, imprisonment, an illegal strip search, breached Plaintiff's home in absence of a warrant; or if a warrant was obtained it was after the search was executed; or if a warrant was obtained it was based on fabricated or grossly misrepresented evidence in violation of the Fourth, Fifth and Fourteenth Amendments to the United States constitution and New York State constitution article 1 § 12. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of attorney's fees and costs pursuant to 42 U.S.C § 1988(b), an award of expert witness fees and costs pursuant to 42 U.S.C. § 1988(c), and such other relief this Court deems just and proper.

PLAINTIFFS' STATE LAW CLAIMS AGAINST JEFFREY SISCO SHIELD # 027744, PAULO DOMINGUEZ SHIELD # 018292, SERGEANT HERMINIO BAEZ TAX # 921134 AND JOHN DOES 1-4 NYPD

29. Plaintiff repeats and re-alleges the allegations contained in ¶¶ 1-

28 as if fully set forth herein.

30. The conduct of Jeffrey Sisco Shield # 027744, Paulo Dominguez Shield # 018292, Sergeant Herminio Baez Tax # 921134 and John Does 1-4, NYPD as described herein, amounted to false arrest, assault, battery, an illegal strip search, and breached Plaintiff's home without a warrant; or if a warrant was obtained it was after the search was executed; or the warrant was based on fabricated or grossly misrepresented evidence in violation of New York State constitution article 1 § 12.

PLAINTIFF'S STATE AND FEDERAL LAW CLAIMS THAT THE SEARCH WAS CONDUCTED IN THE ABSENCE OF A SEARCH WARRANT AND/OR IT WAS DEFECTIVE

32. Plaintiff repeats and re-alleges the allegations contained in ¶¶ 1-31 as if fully set forth herein.

33. The NYPD violated Plaintiff's 4th amendment under the Federal constitution, and Plaintiff's New York State constitutional rights under article 1 § 12.

34. Defendant, NYPD officers, did not possess a search warrant when they breached the Plaintiff's home on February 1, 2014. Plaintiff's 4th amendment right to be free from search and seizures by state actors in absence of a search warrant was violated.

35. Further, by breaching Plaintiff home on February 1, 2014, without a search warrant the NYPD violated the mandates of the New York State

constitution Article 1 § 12, which confers to its citizens freedom from warrantless searches of their home.

36. Alternatively, even if there was a warrant obtained, it was after the search was executed; or the warrant was defective in that it was based on untruthful allegations by Jeffrey Sisco Shield # 027744, Paulo Dominguez Shield # 018292, Sergeant Herminio Baez Tax # 921134, and John Does 1-4, NYPD knowingly made false statements to the prosecutors, or to the Court and/or did so with reckless disregard of the truth; or the warrant did not "describe or designate" a place or person to be searched; or the search warrant was not sufficiently specific to provide a "reasonable means" of identifying the premises or persons to be searched.

37. Further, the execution of the warrant was defective pursuant to CPL 690.50(3), as notice of the purported warrant was never given, and the purported warrant was never displayed to Plaintiff or any other occupant of said premises, despite a demand made to display a valid search warrant.

38. Therefore, for the above-mentioned reasons the NYPD violated Plaintiff's 4th amendment right, and Plaintiff's constitutional right under the New York State constitution Article 1 § 12.

PLAINTIFF'S FEDERAL CLAIMS AGAINST THE CITY OF NEW YORK

39. Plaintiff repeats and re-alleges the allegations contained in ¶¶ 1-38 as if fully set forth herein.

40. The City of New York directly caused the Federal and New York State constitutional violations suffered by Plaintiff.

41. Upon information and belief, the City of New York, at all relevant times herein, were aware of the complained conduct of Jeffrey Sisco Shield # 027744, Paulo Dominguez Shield # 018292, Sergeant Herminio Baez Tax # 921134, and John Does 1-4, NYPD from prior notices of claim, lawsuits, complaints filed with the City's own observations; the City of New York exercised deliberate indifference by failing to take remedial action; failed to properly train, retrain, supervise, discipline, and monitor subject officers; improperly retained and utilized subject officers; and the City of New York failed to adequately investigate prior complaints filed against subject officers.

42. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. §1983 and Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the New York State constitution Article 1 § 12.

PLAINTIFF'S STATE CLAIMS AGAINST THE CITY OF NEW YORK

43. Plaintiff repeats and re-alleges the allegations contained in ¶¶ 1-42 as if fully set forth herein.

44. A notice of claim was duly filed on the City of New York within 90 days from the arrest of Plaintiff, more than 30 days has elapsed since such

filing, and the City has not settled Plaintiff's New York State or United States constitutional claims, and the underlying criminal case remains pending.

45. Plaintiff timely filed this complaint within the (1) one-year and (90) ninety-day statute of limitations period pursuant to GML § 50-1.

46. Jeffrey Sisco Shield # 027744, Paulo Dominguez Shield # 018292, Sergeant Herminio Baez Tax # 921134, and John Does 1-4, NYPD were acting within the scope of their employment; who were involved in the arrest of Plaintiff and torts arising thereof, the City of New York is vicariously liable under state law for the false arrest, false imprisonment, assault, battery, an illegal strip search, and breached Plaintiff's home without a warrant; or if a warrant was obtained it was after the search was executed; or the warrant was obtained on misleading evidence based on gross misrepresentations by Defendants.

47. Further, for the reasons stated in ¶46, the City is liable under state law for negligent training, supervision and retention of Jeffrey Sisco Shield # 027744, Paulo Dominguez Shield # 018292, Sergeant Herminio Baez Tax # 921134 and John Does 1-4, NYPD.

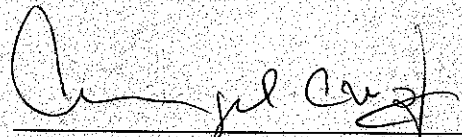
48. NYPD violated Plaintiff rights under Article 1 § 12 of the New York State constitution.

49. Plaintiff seeks payment of attorney's fees pursuant to 42 U.S.C. § 1988(b), and any expert witness fees pursuant to 42 U.S.C § 1988(c).

WHEREFORE, Plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees pursuant to 42 U.S.C § 1988(b);
- d. Cost, interest and expert witness fees pursuant to 42 U.S.C § 1988(c);
- e. Such other and further relief as this Court may deem just and proper, including declaratory relief.

Dated: April 14th, 2015
Bronx, N.Y.



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